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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**(Related: CGC-21-594102;
CGC-25-631801)**

**MEMORANDUM OF POINTS AND
AUTHORITIES**

**RE: MOTION TO DEEM ADMITTED,
COMPEL, AND FOR SANCTIONS**

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TABLE OF AUTHORITIES

Cases

Appleton v. Superior Court, (1988) 206 Cal.App.3d 632

Wilcox v. Birtwhistle, (1999) 21 Cal.4th 973

Doppes v. Bentley Motors, Inc., (2009) 174 Cal.App.4th 967

Statutes

Code Civ. Proc., § 2033.280

Code Civ. Proc., § 2030.290

Code Civ. Proc., § 2031.300

Code Civ. Proc., § 2023.030

Code Civ. Proc., § 2033.420

I. INTRODUCTION

Defendants have failed to serve timely responses to Plaintiff’s **Set Four** and **Set Five** discovery. As to RFAs, **all objections are waived** and the Court **shall** deem the requested matters admitted. (CCP § 2033.280(a).) The Court **shall** impose monetary sanctions and **shall** enter orders compelling responses as provided by CCP §§ 2033.280(b)–(c), 2030.290(b)–(c), and 2031.300(b)–(c). Unverified responses are treated as no response. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632.) Admitted RFAs conclusively establish the fact as against the party whose failure to respond caused the admission. (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973.) Plaintiff reserves escalating sanctions under CCP § 2023.030 and cost-of-proof sanctions under CCP § 2033.420.

II. FACTUAL BACKGROUND

Plaintiff served Sets Four and Five; the meet-and-confer sequence and service proofs are described in the Declaration. No timely verified responses have been served.

III. LEGAL STANDARD — “SHALL” FRAME

Summarize interlocking “shall” statutes: CCP §§ 2033.280(b)–(c) (RFAs); 2030.290(b)–(c) (SROGs); 2031.300(b)–(c) (RFPs).

1 **IV. APPLICATION**

2 Apply standards to each category of unresponded discovery listed in the Separate Statement.

3 **V. SANCTIONS**

4 Plaintiff seeks monetary sanctions in the amount stated in the Declaration (hours × reasonable pro
5 per rate), supported by itemization.

6 **VI. RELIEF REQUESTED**

7 Adopt the Proposed Order; reserve CCP §§ 2023.030 and 2033.420.

Dated: April 28, 2026



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